

Court No. - 38

Case :- WRIT - C No. - 35941 of 2018

Petitioner :- Brij Bilash Gupta

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Awadh Sharma

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Abhinava Upadhya,J.

Hon'ble Ajay Bhanot,J.

The petitioner had applied for electricity connection in the year 1998, but after contesting before the Consumer Forum finally the connection was activated on 1.7.2009 and since then the petitioner has been paying bill.

The grievance of the petitioner is that when he went to deposit the current bill, he was asked to deposit the bill right from 1998, i.e. from the time the connection was not even activated.

We have considered the submissions of learned counsel for the petitioner and Shri F.A. Ansari holding brief of Shri Mahboob Ahmad, learned counsel for the electricity department.

The petitioner has not filed any bill to indicate that any outstanding bill is being demanded. However, in respect of dispute of bill the petitioner can approach the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. In case such an application is filed by the petitioner before the Executive Engineer, the same be considered and decided in accordance with law by the Executive Engineer, as far as possible, within one month from the date of filing of such application along with a certified copy of this order.

With the aforesaid direction, the writ petition is disposed of.

Order Date :- 29.10.2018

Sunil Kr. Gupta

(Ajay Bhanot, J.) (Abhinava Upadhya, J.)